Rwanda: Beneath the facade of Consensus Democracy

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25 years after the Inter-Rwandan Dialogue birthed 'consensus democracy', it is now time to revisit and renew the system.

Opposition figure, Diane Rwigara, being led to court after her attempt to run in the 2017 presidential elections had been thwarted. Photo courtesy: Diane Shima Rwigara.

On International Day of Democracy, nations come together to celebrate the core values that define true democratic societies: rule of law, active citizen participation, independent institutions, and a deep respect for human rights. Yet, in Rwanda, under the leadership of President Paul Kagame, these principles remain largely theoretical. Despite Kagame's rhetoric of a "unique democracy" tailored to Rwanda's context; a narrative often echoed on international platforms like in the just concluded 2024 Summit of the Forum on China-Africa Cooperation during which he voiced out (https://x.com/UrugwiroVillage/status/1831872937751609366) that "each country must chart its own path that aligns with its unique context, history, and aspirations". The reality on the ground starkly contrasts with these ideals. Rwanda offers a troubling example where the appearance of progress and democratic governance masks a deeply repressive regime.

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Rwanda's government claims to operate under a "consensus democracy," a system agreed on during the Inter Rwandan dialogue that took place in 1999 and that is supposedly tailored to the country's unique post-genocide context. The idea behind this model is to promote unity and prevent divisive politics by making decisions through consensus rather than majority rule. However, how this is put in practice breaches the Rwandan Constitution, which enshrines democratic principles such as pluralism, fair & free elections, and the right to political participation.

In reality, Rwanda's so-called consensus democracy is a mechanism for suppressing (https://www.aljazeera.com/opinions/2022/9/15/rwandas-consensual-democracy-needs-a-reset) dissent and maintaining the ruling party's grip on power. It effectively silences opposition voices, leaving little room for genuine political discourse or competition. The Constitution's provisions for democracy, human rights and civil liberties are thus undermined, reducing it to a mere document with little bearing on the actual political landscape.

True democracy thrives on the active participation of its citizens. In Rwanda, however, this is sorely lacking and Rwanda falls well (https://africanarguments.org/2022/02/rwanda-economic-plans-have-fallen-short-the-answer-listen/) below sub-Saharan Africa's average for "voice and accountability". Political opposition in Rwanda is not just discouraged but often met with severe intimidation, harassment, and even imprisonment.

A stark example is Diane Rwigara (https://www.bbc.com/news/world-africa-46471808), an activist and businesswoman. After announcing her candidacy for the 2017 presidential election, she was disqualified, subjected to a smear campaign, and even imprisoned. She was acquitted after the elections was completed.

An other key example of Christopher Kayumba (https://www.citizen.digital/news/rwanda-acquits-opposition-figure-detained-for-rape-n314908). In September 2021, shortly after founding an online newspaper called "The Chronicles" and establishing a political organization, Kayumba was accused of rape. He was detained for 17 months, enduring a lengthy and grueling legal battle. He was acquitted of the charge. But the experience appears to have had a chilling effect; Kayumba has not been vocal about politics since his release.

These cases exemplify how the Rwandan government systematically suppresses dissent, using the legal system as a tool to stifle political opposition and discourage others from challenging the status quo.

The few opposition parties that exist are either co-opted by the government or operate under severe constraints, making meaningful citizen participation nearly impossible. This stifling environment not only contradicts the spirit of democracy but also the very letter of Rwanda's constitutional guarantees.

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In Rwanda, the judiciary, parliament, and executive branches are deeply intertwined, functioning more as tools of the ruling elite than as independent institutions that uphold the rule of law. Rather than acting as checks on power, they serve to reinforce President Paul Kagame's authoritarian grip on the country.

Those who dare to challenge or are perceived to challenge the narrative of the government are routinely detained under vague or fabricated charges. Many never receive a fair trial, and some face dire consequences, including disappearance even death while in authorities custody. Take the case of Boniface Twagirimana, (https://edition.cnn.com/2019/07/27/africa/rwanda-opposition-disappearances-intl/index.html) a senior member of the FDU-Inkingi opposition party, who mysteriously disappeared from a high-security prison in 2018, with authorities claiming he escaped. To this day, his whereabouts are unknown, and many believe he was killed while in custody. His case is emblematic of a broader pattern of arbitrary detention and disregard for basic human rights.

The death of Kizito Mihigo (https://www.dw.com/en/rwanda-gospel-singer-kizito-mihigos-death-likely-a-political-assassination/a-52463272), a popular gospel singer, further illustrates the regime's control over the legal system. Mihigo was arrested in 2020 for allegedly attempting to flee the country and was found dead in his prison cell shortly after. The authorities claimed it was suicide, but the lack of a thorough, independent investigation only underscores the culture of impunity that prevails in Rwanda. As Human Rights Watch's report "Join Us or Die" (https://www.hrw.org/report/2023/10/10/join-us-or-die/rwandas-extraterritorial-repression) highlights, the Rwandan government's security forces have consistently resorted to extrajudicial killings and disappearances to eliminate any perceived threat to Kagame's rule.

In some cases, Rwanda goes as far as breaching its international obligation. The case of Victoire Ingabire (https://www.aljazeera.com/opinions/2022/4/20/my-story-being-an-opposition-figure-in-rwanda), a leading opposition figure, is a prime example of how Rwanda breached international legal system. In 2010, Ingabire was arrested and sentenced to 15 years in prison on politically motivated (https://www.europarl.europa.eu/doceo/document/TA-8-2016-0378_EN.html) charges of terrorism and threatening national security; charges. The Rwandan government ignored a ruling (https://www.african-court.org/cpmt/details-case/0032014) from the African Court on Human and Peoples' Rights that cleared her from all charges.

In addition to the judiciary, Rwanda's parliament also lacks independence, functioning more as a rubber-stamp institution for Kagame's policies than as a body that represents the will of the people. Critical debates on important national issues, such as human rights abuses or the treatment of political prisoners, are notably absent from parliamentary sessions. Parliamentarians, many of whom owe their positions to their loyalty to the ruling party, refrain from challenging the executive, further entrenching Kagame's authoritarian rule.

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In this system, the executive wields unchecked power, with Kagame controlling nearly every aspect of Rwandan governance. This consolidation of authority leaves no room for the independent functioning of other branches of government. Laws are selectively enforced to target Kagame's critics while his loyalists remain immune from prosecution, even when implicated in serious abuses.

Rwanda boasts one of the highest rates of female representation in parliament, a statistic often lauded as a sign of progress. However, this achievement masks a deeper problem: the Rwandan parliament is far from independent since the vast majority are members of to the ruling party (https://scholarworks.gsu.edu/cgi/viewcontent.cgi?article=1011&context=anthro_facpub). It functions more as a rubber-stamp body for the executive than a check on its power.

Despite the high percentage of women in parliament, their presence does little to promote democracy or human rights. These parliamentarians rarely, if ever, speak out against human rights abuses or challenge the government's actions. The high rate of female representation is thus a façade, used to bolster Rwanda's international image while concealing the reality of its undemocratic governance.

None of the cases mentioned above have ever been debated in Parliament, which highlights the lack of independence within Rwanda's legislative body. This absence of critical discussion on pressing human rights issues is a clear indication that Rwandan parliamentarians are not free to act independently but are instead constrained by the interests of the ruling party.

The 2024 elections in Rwanda have once again exposed the country's profound democratic deficit. The overwhelming, almost Stalinist, victory claimed by Paul Kagame mirrors the patterns of past elections, where outcomes were predetermined, and opposition voices silenced. This result reflects not a genuine democratic process but the continuation of a regime that uses elections as a façade to maintain control, stifling any real political competition or dissent.

Opposition leaders like Victoire Ingabire, Bernard Ntaganda and Diane Rwigara (https://foreignpolicy.com/2024/06/12/rwanda-kagame-rwigara-ingabira-election-banned/) were banned from participating. The three had prior all faced harassment, imprisonment, and legal challenges designed to prevent her from mounting any serious political challenge.

The exclusion of genuine opposition candidates ensures that the election results will be a foregone conclusion, further entrenching the RPF's dominance. Such a process cannot be considered a free or fair election, but rather a continuation of Rwanda's dictatorial regime under the guise of democracy.

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Reports from international organizations like Freedom House and Human Rights Watch paint a grim picture of Rwanda's democratic credentials. Freedom House (https://freedomhouse.org/country/rwanda/freedom-world/2023) consistently rates Rwanda as "Not Free," citing severe restrictions on political rights and civil liberties. Human Rights Watch (https://www.hrw.org/world-report/2023/country-chapters/rwanda) has documented numerous human rights violations, including repression of the media, arbitrary detention, and the persecution of political opponents.

These reports underscore the urgent need for the international community to reassess its engagement with Rwanda. The current state of affairs in the country is not sustainable, and continued international support without accountability only emboldens the Rwandan government to persist in its repressive practices.

Genuine democracy, characterized by free and fair elections, open political participation, and an independent media, threatens Paul Kagame's grip on power in several ways. Democracy includes competition and dissent; two elements Kagame's government has historically suppressed. It also embodies separation of powers and could expose human rights abuses and other flaws of Kagame's government.

As the world commemorates the International Day of Democracy, it is essential for the global community to look beyond Rwanda's carefully cultivated image and confront the stark realities of its governance. The country's democratic façade should not be mistaken for genuine democratic practices. Rwandan leaders must be held accountable, and the international community should demand meaningful reforms that prioritize the rule of law, human rights, and authentic citizen participation.

President Paul Kagame of Rwanda has in the past faced pressure from Western funders, particularly the United States and the United Kingdom, to advance democratic reforms. During the 2021 Universal Periodic Review of Rwanda, the United Kingdom issued a public statement urging Rwandan government to strengthen democratic governance (https://www.gov.uk/government/speeches/37th-universal-periodic-review-uk-statement-on-rwanda), including fostering freedom of the press and ensuring more transparent elections.

Similarly, when the U.S. Secretary of State Antony Blinken was on visit to Rwanda in 2022, he publicly raised concerns about human rights violations (https://apnews.com/article/africa-rwanda-antony-blinken-central-paul-kagame-c06c29fb3052d4bd44aaaef1332cf2ed) and the need for Rwanda to expand political freedoms, to address issues such as the detention of government critics like Paul Rusesabagina. Washington emphasised the importance of protecting freedom of speech and creating more political space for opposition parties. Although these pressures reflect a broader Western interest in promoting human rights and democratic norms in Rwanda, a lot more needs to be done.

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Just as Rwanda adopted a form of consensus democracy through Inter Rwandan dialogue in 1999, it is now time to revisit and renew that system and address its weaknesses shown over the past 25 years. There is indeed a need to hold a new inter Rwandan dialogue (https://www.aljazeera.com/opinions/2021/12/10/intra-rwandan-dialogue-is-crucial-for-peace-in-the-great-lakes) that convene government officials and political opposition as well as civil society from in and outside Rwanda, to agree on a political framework that address issues such as political exclusion, lack of citizen participation and respect for human rights and rule of law that characterize existing consensus democracy practiced in Rwanda over the past 25 years.

In conclusion, Rwanda's lack of democracy is not only a domestic issue but a global concern that demands immediate action. The international community must stand with the Rwandan people in their fight for true democracy; one where their voices are heard, their rights upheld, and their leaders are accountable. Only through collective efforts can Rwanda truly embody the values of democracy, not just on this day, but for the future.

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